

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lily Carayannis	Team: Squad #12	CCRB Case #: 201409305	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 07/28/2014 2:54 PM	Location of Incident: Wyckoff Avenue and Himrod Street	18 Mo. SOL 1/28/2016	Precinct: 83		
Date/Time CV Reported Mon, 09/08/2014 8:17 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 09/10/2014 11:16 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Saeed Nieves	17115	946060	083 PCT
2. POF Stephanie Banchs	25406	940961	083 PCT
3. SGT Anna Serrano	03572	916675	083 PCT
4. An officer			083 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Jennifer Lavelle	00235	933921	083 PCT
2. POM Kevin Ermann	05856	951712	083 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Anna Serrano	Discourtesy: SGT Anna Serrano spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Saeed Nieves	Force: PO Saeed Nieves used physical force against § 87(2)(b)	B . Unfounded
C . POM Saeed Nieves	Force: PO Saeed Nieves used a chokehold against § 87(2)(b)	C . Unfounded
D . POM Saeed Nieves	Discourtesy: PO Saeed Nieves spoke discourteously to § 87(2)(b)	D . Unsubstantiated
E . POM Saeed Nieves	Discourtesy: PO Saeed Nieves spoke discourteously to individuals.	E . Unsubstantiated
F . An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b)	F . Officer(s) Unidentified
G . POF Stephanie Banchs	Discourtesy: PO Stephanie Banchs spoke discourteously to § 87(2)(b)	G . Unsubstantiated
	§ 87(4-b) § 87(2)(g)	

Case Summary

On July 28, 2014, § 87(2)(b) called 911 against § 87(2)(b) who she alleged had broken an order of protection numerous times between July 26, and July 28, 2014. PO Saeed Nieves and SGT Anna Serrano, both from the 83rd Precinct, responded. PO Nieves and SGT Serrano instructed § 87(2)(b) to set up a meeting with § 87(2)(b) at a coffee shop located at the corner of Wyckoff Avenue and Himrod Street in Brooklyn while the officers watched. § 87(2)(b) set up the meeting and § 87(2)(b) arrived. PO Nieves and SGT Serrano approached § 87(2)(b). SGT Serrano allegedly said, “Get the fuck on the ground. Give me a fucking reason” (**Allegation A**). PO Nieves allegedly charged at § 87(2)(b) who was seated, and tackled him, causing both to roll on the ground (**Allegation B**). § 87(2)(b) ended up on top of PO Nieves and PO Nieves allegedly locked his arm around § 87(2)(b)'s throat and pulled back constricting § 87(2)(b)'s breathing (**Allegation C**). PO Nieves allegedly yelled, “Give me a fucking reason” (**Allegation D**). PO Nieves then allegedly said to the bystanders, “Back the fuck up. Back the fuck up from my crime scene. This guy likes to shoot at his girlfriend” (**Allegation E**). Additional officers arrived to the scene and rolled § 87(2)(b) off of PO Nieves. PO Nieves allegedly bent § 87(2)(b)'s wrist causing it to fracture (**Allegation B continued**). An officer said, “Motherfucker, you got what was coming to you” (**Allegation F**). § 87(2)(b) was handcuffed and placed in a patrol vehicle, where PO Banchs said, “Shut the fuck up and enjoy the ride” (**Allegation G**). PO Nieves said to him that PO Nieves’ arm was “fucked up” and that § 87(2)(b) was a liar (**Allegation D continued**). § 87(2)(b) was treated at § 87(2)(b) while in police custody for contusions. § 87(2)(b) was charged with multiple counts of § 87(2)(b).

This case has surveillance video which does not have audio.

Mediation, Notice of Claim, and Criminal Histories

This case was unsuitable for mediation as § 87(2)(b) was claiming personal injury and he was arrested. As of January 22, 2015, § 87(2)(b) has not filed a Notice of Claim with the New York City Office of the Comptroller (encl. J2). § 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

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Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (encl. B4)
- PO Saeed Nieves has been a member of the service for seven years and has no substantiated CCRB complaints against him (encl. B3).
- PO Stephanie Banks has been a member of the service for nine years and has no substantiated CCRB complaints against her (encl. B2).
- SGT Anna Serrano has been a member of the service for 19 years and has one substantiated CCRB allegation against her (encl. B1):
 - 200204919, one allegation of a refusal to provide medical treatment was substantiated by the Board and the NYPD found her guilty. She lost 10 vacation days as a result.

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) (encl. C1-10) could not see the officer who allegedly stated, “Motherfucker, you got what was coming to you.” He could only describe the voice as a male’s voice. Numerous male officers were on the scene and none of the officers interviewed acknowledged hearing or saying this statement. § 87(2)(g)

PO Nieves (encl. F1-24), PO Banchs (encl. H5-6), and SGT Serrano (encl. G1-3) all identified themselves and each other in the surveillance video. PO Nieves and SGT Serrano were the first officers to approach § 87(2)(b) § 87(2)(g)

The video evidence shows that PO Banchs and SGT Serrano were the only female officers at the location, § 87(2)(g)

Investigation Findings and Recommendations

Allegation A—Discourtesy: SGT Anna Serrano spoke discourteously to § 87(2)(b)

Allegation D—Discourtesy: PO Saeed Nieves spoke discourteously to § 87(2)(b)

Allegation E—Discourtesy: PO Saeed Nieves spoke discourteously to individuals.

Allegation G—Discourtesy: PO Stephanie Banchs spoke discourteously to § 87(2)(b)

§ 87(2)(b) (encl. C1-10) alleged when PO Nieves and SGT Serrano approached him, SGT Serrano said, “Get the fuck on the ground. Give me a fucking reason.” Then during the struggle, PO Nieves said, “Give me a fucking reason.” PO Nieves then said to individuals watching the struggle, “Back the fuck up. Back the fuck up from my crime scene. This guy likes to shoot at his girlfriend.” Then while in the patrol vehicle, PO Banchs said, “Shut the fuck up and enjoy the ride.” PO Nieves told § 87(2)(b) that his arm was “fucked up.”

None of the witnesses were cooperative with the investigation (encl. E8). None of the video evidence obtained had sound.

All of the officers interviewed denied saying these phrases and they denied hearing these phrases said (encl. encl. F1-H11).

§ 87(2)(g)

It is therefore recommended that **Allegations A, D, E, and G** be **unsubstantiated**,

Allegation B—Force: PO Saeed Nieves used physical force against § 87(2)(b)

Allegation C—Force: PO Saeed Nieves used a chokehold against § 87(2)(b)

§ 87(2)(b) (encl. C1-10) alleged that PO Nieves charged at § 87(2)(b) and tackled him while § 87(2)(b) was sitting on a chair. He stated the force of the hit made both § 87(2)(b) and PO Nieves fall and roll on the ground. § 87(2)(b) ended up on top of PO Nieves and PO Nieves placed his arm like a bar around § 87(2)(b)'s throat. PO Nieves used his other hand to pull the arm closer to his body while he held his legs around § 87(2)(b)'s torso. § 87(2)(b) stated that he did not resist beyond attempting to remove PO Nieves arm from his throat and flipping his legs “like a fish out of water.” PO Nieves then bent § 87(2)(b) wrist forcefully causing it to fracture while handcuffing him.

§ 87(2)(a) PHL § 18(6)

§ 87(2)(g), § 87(4-b)

POD: __12__

Investigator: _____ Lily Carayannis May 7, 2015
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date